

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: RECONSIDERATION OF 6/17/26 JEEP ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Erica Plam and Respondent Eric Plam.
- 2) At the prior 5/19/26 hearing, Visiting Judge Kathleen Diesman issued orders regarding the distribution of funds from the net sale proceeds of the parties' San Francisco property, which remained in counsel for Petitioner's client trust account. This order included an award of \$25,201 to Respondent for the Jeep settlement refund from Petitioner's share of the funds. See Findings and Order After Hearing (FOAH) filed 6/17/26.
- 3) On 6/30/26, Petitioner filed a Motion for Reconsideration of the Court's 5/19/26 order (filed 6/17/26). Petitioner requests the Court reconsider awarding Respondent \$25,201 for the Jeep settlement refund from Petitioner's share of the funds under Code of Civil Procedure section 1008. Petitioner argues that that the Court mischaracterized the Jeep as Respondent's separate property in its Final Statement of Decision (filed 10/7/25).
- 4) On 7/24/26, Petitioner filed a Supplemental Declaration in support of the Motion for Reconsideration attaching the official Reporter's Transcript from the 5/19/26 hearing.

1 5) On 7/29/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Motion for
2 Reconsideration. Respondent asserts that the \$25,201 obligation originates from the Final
3 Statement of Decision (filed 10/7/25), not the Court's 5/19/26 order (filed 6/17/26). Respondent
4 requests the Court disregard or strike Petitioner's 7/24/26 Supplemental Declaration. Respondent
5 seeks an order compelling counsel for Petitioner to release the \$25,201 to Respondent within 3
6 court days of the hearing with 10% interest accruing from 7/20/26. Respondent requests the Court
7 reserve jurisdiction over Family Code section 271 sanctions against Petitioner.

8 **B. Findings and Order**

- 9 1) The Court could decline to consider Petitioner's 7/24/26 Supplemental Declaration as the rules do
10 not provide for the filing of such a pleading; however, the Court finds doing so would not alter
11 the Court's Code of Civil Procedure section 1008 analysis. The Court therefore considered
12 Petitioner's 7/24/26 Supplemental Declaration.
- 13 2) Per Code of Civil Procedure section 1008(a), "When an application for an order has been made to
14 a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on
15 terms, any party affected by the order may, within 10 days after service upon the party of written
16 notice of entry of the order and based upon new or different facts, circumstances, or law, make
17 application to the same judge or court that made the order, to reconsider the matter and modify,
18 amend, or revoke the prior order. The party making the application shall state by affidavit what
19 application was made before, when and to what judge, what order or decisions were made, and
20 what new or different facts, circumstances, or law are claimed to be shown."
- 21 3) Petitioner's Motion for Reconsideration is within the 10-day window allowed under Code of
22 Civil Procedure Section 1008.
- 23 4) Petitioner requests the Court reconsider awarding Respondent \$25,201 for the Jeep settlement
24 refund from Petitioner's share of funds from the net sale proceeds of the parties' San Francisco
25 property. However, the Court's 5/19/26 order (filed 6/17/26) is simply an enforcement order. In
26 effect, Petitioner seeks reconsideration of the Court's Final Statement of Decision (filed 10/7/25),
27 which characterized the Jeep as Respondent's separate property. Such relief is neither available
28 under Code of Civil procedure section 1008 nor would result from reconsideration of the Court's
29 5/19/26 order (filed 6/17/26).

- 1 5) Further, the Court finds Petitioner did not present evidence of new or different facts or
- 2 circumstances or change in law warranting reconsideration of the Court's 5/19/26 order (filed
- 3 6/17/26).
- 4 6) Accordingly, Petitioner's Motion for Reconsideration is DENIED.
- 5 7) Counsel for Petitioner shall release the \$25,201 to Respondent within 3 court days of the hearing
- 6 with 10% interest accruing from 7/20/26.
- 7 8) The Court reserves jurisdiction over Family Code section 271 sanctions against Petitioner.
- 8 9) The Court will prepare the Findings and Order After Hearing.
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